



CHAPTER cclxxvi.

An Act to incorporate the Watford and District Tramways Company and to empower that Company to make and maintain tramways and other works and for other purposes.

[17th August 1901.]

A.D. 1901.

WHEREAS the making and maintaining of the tramways and other works hereinafter described and by this Act authorised and the working of the tramways by mechanical power would be of public and local advantage :

And whereas the persons in that behalf in this Act named with others are willing at their own expense to construct the tramways if authorised by Parliament so to do and are desirous of being incorporated into a company (hereinafter called "the Company") with adequate powers for the purpose and it is expedient that they be incorporated and empowered accordingly as by this Act provided :

And whereas it is expedient that the Company and the local and road authorities be empowered to enter into and carry into effect agreements as hereinafter provided and that the other powers mentioned in this Act be conferred upon the Company and that the provisions of the Tramways Act 1870 as to the purchase of the undertaking of the Company should be modified as hereinafter mentioned :

And whereas plans and sections showing the lines and levels of the tramways by this Act authorised and indicating the position thereof in the streets along which they are to be laid and also books of reference to those plans were duly deposited with the clerk of the peace for the county of Hertford and are hereinafter respectively referred to as the deposited plans sections and books of reference :

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A.D. 1901. — And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. 1. This Act may be cited as the Watford and District Tramways Act 1901.

Incorporation of general Acts. 2. The Companies Clauses Consolidation Act 1845 Part I. (relating to cancellation and surrender of shares) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts and section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) Part II. (Construction of tramways) and Part III. (General provisions) except section 43 (Future purchase of undertaking by local authority) of the Tramways Act 1870 are (except where expressly varied by this Act) incorporated with and form part of this Act Provided that for the purposes of this Act the rural district council shall be deemed the local authority mentioned in section 3 Part I. of Schedule A. of the Tramways Act 1870 in lieu of the vestry select vestry or other body or persons acting by virtue of any Act of Parliament prescription custom or otherwise as or instead of a vestry or select vestry.

Interpretation. 3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction:

“The Company” means the Company incorporated by this Act;

“The tramways” and “the undertaking” mean respectively the tramways and other works and the undertaking by this Act authorised;

“Mechanical power” includes electrical and every other motive power not being steam or animal power;

“Engine” includes motor;

The word “contingencies” in the Companies Clauses Consolidation Act 1845 section 122 shall with reference to the Company be construed to include the contingency of the undertaking being sold to the local authority at a sum less than the aggregate amount of the capital and debts of the Company.

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all other persons and corporations who have already subscribed to Company in-
or shall hereafter become proprietors in the undertaking and their corporated.
executors administrators successors and assigns respectively shall be
and are hereby united into a Company for the purpose of making
and maintaining the tramways and for other the purposes of this
Act and for those purposes shall be and are hereby incorporated by
the name of "The Watford and District Tramways Company" and
by that name shall be a body corporate with perpetual succession
and a common seal and with power to purchase take hold and
dispose of lands and other property for the purposes of this Act.

WORKS.

5. Subject to the provisions of this Act and of Parts II. and Power to
III. of the Tramways Act 1870 so far as incorporated with this Act make tram-
the Company may make form lay down work use and maintain the ways and
tramways hereinafter described in the lines and according to the other works.
levels shown on the deposited plans and sections and in all respects
in accordance with those plans and sections with all proper rails
plates posts tubes wires apparatus stations depôts works and con-
veniences connected therewith Provided that nothing in this Act
shall authorise any interference with electric lines and works of any
undertakers under the Electric Lighting Acts 1882 and 1888 to
which the provisions of section 15 of the former Act apply except
in accordance with and subject to the provisions of that section.

The tramways hereinbefore referred to and authorised by this
Act will be situated in the urban district of Watford in the county
of Hertford and are—

Tramway No. 2 4 furlongs 4·00 chains or thereabouts in length
(whereof 3 furlongs 5·00 chains is single and 9·00 chains is
double line) wholly in the parish and urban district of Watford
commencing in St. Albans Road at a point 0·80 chain south
of the intersection of the centre lines of St. Albans Road
and Judge Street passing thence in a southerly direction
along St. Albans Road and terminating therein at a point
2·70 chains south of the intersection of the centre lines of
St. Albans Road and Station Road :

Tramway No. 3 1 furlong 0·20 chain or thereabouts in length
(whereof 7·20 chains is single and 3·00 chains is double line)
wholly in the parish and urban district of Watford commencing

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in St. Albans Road by a junction with Tramway No. 2 at a point 0·60 chain north of the intersection of the centre lines of St. Albans Road and Station Road passing thence in a southerly and easterly direction into and along Station Road and terminating therein at a point 4·00 chains east of the intersection of the centre lines of Station Road and Westland Road :

Tramway No. 4 2 furlongs 5·75 chains or thereabouts in length (whereof 2 furlongs 2·75 chains is single and 3·00 chains is double line) wholly in the parish and urban district of Watford commencing in St. Albans Road by a junction with Tramway No. 2 at its point of termination passing thence in a southerly direction along St. Albans Road and south-easterly into and along High Street and terminating therein at a point 1·90 chains south-east of the intersection of the centre lines of St. Albans Road and High Street :

Tramway No. 6 1 mile 3 furlongs 2·90 chains or thereabouts in length (whereof 1 mile 4·90 chains is single and 2 furlongs 8·00 chains is double line) wholly in the parish and urban district of Watford commencing in High Street by a junction with Tramway No. 4 at its point of termination passing thence in a south-easterly direction along High Street and Chalk Hill and easterly along London Road and terminating therein at a point 9·60 chains east of the intersection of the centre lines of London Road and Villiers Road :

Tramway No. 12 (a single line) 1·20 chains or thereabouts in length wholly in the parish and urban district of Watford commencing in Station Road by a junction with Tramway No. 3 at a point 4·90 chains west of the intersection of the centre lines of Station Road and Westland Road passing thence in a westerly and south-westerly direction into St. Albans Road and terminating therein by a junction with Tramway No. 2 at a point 0·70 chain south of the intersection of the centre lines of Station Road and St. Albans Road.

Power to
make con-
nection with
generating
stations.

6. The Company may lay down and maintain in connection with the tramways by this Act authorised a cable or cables or line of pipes for conducting electrical power by means of cables or wires enclosed therein underground with street boxes and other apparatus for the purpose of forming a connection with any generating station from which the supply of electricity may be obtained for the working of the tramways and the following provisions contained in the

schedule to the Electric Lighting (Clauses) Act 1899 shall apply to the execution of this work in the same manner as if the Company were undertakers acting under a special order within the meaning of that Act (that is to say):—

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Section 10 (Systems and mode of supply);

Section 13 (Street boxes);

Section 14 (Notice of works);

Section 15 (As to streets not repairable by local authority railways tramways and canals);

Section 16 (Street authority may give notice of desire to break up streets &c. on behalf of undertakers);

Section 17 (As to alteration of pipes wires &c. under streets);

Section 18 (Laying of electric lines near sewers &c.);

Section 20 (For protection of telegraphic and telephonic wires);

Section 69 (Remedying of system and works); and

The sections of the Gasworks Clauses Act 1847 set out in the appendix to that schedule.

7. Subject to the provisions of this Act the Company may enter upon take hold and use the lands shown upon the deposited plans and described in the deposited books of reference hereinafter described and may on such lands but not elsewhere construct a station or stations for generating electrical power and erect thereon buildings and use dynamos engines and other apparatus and things necessary or proper for the generation of electricity or the working of tramways thereby The lands hereinafter referred to are as follows:—

Power to take and use lands for generating stations.

A piece of land in the parish of Bushey Urban immediately adjoining to and south of London Road being part of field or enclosure numbered 15 upon sheet No. xliv-6 of the $\frac{1}{2500}$ Ordnance map of Hertfordshire and two acres or thereabouts in extent.

LANDS.

8. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Hertford for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall

Correction of errors &c. in deposited plans and books of reference.

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Period for compulsory purchase of lands.

9. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Restriction on taking houses of labouring class.

10. The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Company purchase or acquire any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section—

The expression “labouring class” means and includes mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them; and

The expression “house” means any house or part of a house occupied as a separate dwelling.

Power to grant easements &c.

11. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement

right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. A.D. 1901.

12. In addition to the other lands which the Company are by this Act authorised to purchase and acquire they may purchase take on lease or acquire by agreement for the purpose of their undertaking and may hold any lands not exceeding five acres and they may on such lands and on any other lands purchased or acquired under the authority of this Act erect or construct and hold depôts yards wharves offices buildings stations sidings works and other conveniences in connection with their undertaking but nothing in this Act shall exonerate the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any land purchased or acquired by agreement under the powers of this section. Purchase of lands by agreement.

CONSTRUCTION AND MAINTENANCE.

13. No tramway shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade. Inspection by Board of Trade.

14. If the tramways are not completed within three years from the passing of this Act then on the expiration of that period the powers by this Act granted for making or completing the same or otherwise in relation thereto respectively shall cease except as to so much thereof as shall then be completed. Period for completion of tramways.

15.—(1) The tramways shall be constructed on a gauge of four feet and eight and a half inches or such other gauge as the Board of Trade may approve. Gauge of tramways.

(2) No carriage constructed for use on railways shall pass along the tramways.

16. If and whenever after the passing of this Act the road authority alters the level of any road along or across which any part of the tramway is laid or authorised to be laid the Company shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered. Tramways to be kept on level of surface of road.

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Plans of
proposed
mode of con-
struction of
tramways.

17.—(1) In addition to the requirements of section 26 of the Tramways Act 1870 the Company shall at the same time as they give notice to the road authority of their intention to open or break up any road for the purpose of constructing laying down maintaining and renewing any of the tramways lay before the Board of Trade plans showing the proposed mode of constructing laying down maintaining and renewing such tramways and a statement of the materials intended to be used therein and the Company shall not commence the construction laying down maintenance and renewal of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by section 26 of the said Act.

(2) If any dispute shall arise between the Company and the road authority or the said surveyor as to what method of paving is the more suitable for any road or otherwise under this section such dispute shall be referred to arbitration under the Tramways Act 1870.

As to rails
of tramways.

18. The rails of the tramways shall be such grooved rails or such other rails as the Board of Trade may approve.

Penalty for
not maintain-
ing rails
and roads.

19. The Company shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Company at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues and such penalty shall be a penalty within the meaning of section 56 of the said Act.

In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situated or by twenty inhabitant ratepayers of such district that the Company have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and

in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Company to such penalty or penalties in respect thereof as is or are by this section imposed.

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20. The local and road authorities shall at all times have free access to and communication with all their sewers and drains or electrical lines or works and power to lay lateral and private drains or electrical lines or works to communicate therewith without the consent or concurrence of the Company and the provisions contained in the thirty-second and thirty-third sections of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain or electrical lines or works of or under the control of the local and road authorities as if the same were a pipe for the supply of gas or water.

Local and road authorities to have access to sewers.

21. The Company may subject to the provisions of this Act with the consent of the local authority and road authority from time to time make maintain alter and remove such crossings cross-overs passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways or for providing access to any stations warehouses stables carriage-houses or works of the Company and if any street or road on which the tramways or any part thereof are or is authorised to be laid shall be widened or altered otherwise than as provided by this Act the Company may with the like consent from time to time take up and remove such tramways or part thereof if already constructed and reconstruct the same or if not already constructed may construct the same in such position as the local authority and road authority may approve Provided that in the construction of any such works no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Company within three weeks after receiving from the Company notice in writing of their intention express their objection thereto.

Power to make additional crossings &c.

22. The Company may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines

Alteration of tramways.

A.D. 1901. on any of the tramways and if at any time after the construction of any of the tramways the road in which the same or any part thereof is laid has been or shall be altered or widened the Company may take up and remove such tramway or part thereof and reconstruct the same in such position as they may think fit Provided that in the exercise of the powers of this section no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Company within three weeks after receiving from the Company notice in writing of their intention express their objection thereto.

Passing
places to be
constructed
where less
than 9ft. 6in.
width left
between
footway and
tramway.

23. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Company shall if so required by the road authority construct a passing place or places connecting the one tramway with the other and by the means of such passing place or places the traffic shall when necessary be diverted from one tramway to the other.

Temporary
tramways
may be made
where
necessary.

24. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways is laid it is in the opinion of the Company necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Company may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued.

Application
of road
materials
excavated in
construction
of works.

25. Any paving metalling or material excavated by the Company in the construction of the tramways from any road or bridge under the jurisdiction or control of any road authority may be applied by the Company so far as may be necessary in or towards the reinstating of the road or bridge and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Company are by section 28 of the Tramways Act 1870 required to maintain and the Company shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor

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of the road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Company and may be dealt with removed and disposed of by them in such manner as they may think fit. Any difference between the Company and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be determined in manner provided by the Tramways Act 1870 with respect to differences between the promoters and any road authority.

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26. The Company may erect and maintain sheds or shelters or waiting rooms for the accommodation of passengers and of the Company's servants and the Company may with the consent of the road authority for such period and on such terms as the road authority may impose use for that purpose portions of the public streets or roads within the district of the road authority.

Shelters
or waiting
rooms.

27. In the construction of the works by this Act authorised the Company may deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet upwards and two feet downwards and they may deviate laterally within the limits of deviation shown on the deposited plans.

Deviation.

28. Subject to the provisions of this Act the Company may during the execution of the works with the consent of the road authority expressed in writing by the clerk of such authority stop up temporarily the carriageway or footway of any road or bridge as they think necessary and for that purpose may put up bars posts and other erections.

Stopping of
roads during
execution
of works.

29. Should the Company desire under the authority of this Act to do any act which shall or may render necessary the removal displacement or duplication of any of the then existing mains or pipes valves hydrants or apparatus or other works belonging to the Colne Valley Water Company (in this section called "the water company") the Company shall give to the water company fourteen days' notice in writing of such desire and the said water company shall forthwith (without prejudice nevertheless to the protection afforded it by the Tramways Act 1870) make such removal displacement or duplication as may be necessary and do all works incident thereto and all expenses to be thereby incurred

For pro-
tection of
Colne Valley
Water Com-
pany.

A.D. 1901. shall be defrayed by the Company Nothing contained in this Act shall interfere with the exercise by the said water company of the powers and privileges conferred upon it by any Acts or Act of Parliament of laying down maintaining and as occasion may require of repairing and altering any mains pipes or service pipes in and under any of the roads upon which the tramways may be laid under the authority of this Act.

For protection of
London
and North
Western
Railway
Company.

30. For the protection of the London and North Western Railway Company (herein-after referred to as "the North Western Company") the following provisions shall unless otherwise agreed apply and have effect:—

- (1) No additional crossing passing place siding or turnout shall be made in connection with so much of Tramway No. 6 as will extend over the distance in front of the entrances to the North Western Company's High Street Station Watford and as will extend for a length of ten yards from each end of such distance and in working the said Tramway No. 6 by this Act authorised no tramcar or other vehicle used thereon shall without the consent in writing of the North Western Company under their common seal be stopped or permitted to be stopped within such distances and lengths except for and only so long as may be absolutely necessary for the purpose of setting down and taking up passengers :
- (2) The Company shall not in any way vary alter or interfere with the structure of any bridge carrying any road over any railway of the North Western Company and they shall so construct and maintain the tramways over such bridge as not injuriously to affect the same :
- (3) In the event of any injury being caused to any such bridge by the construction maintenance repairing user or removal of any of the tramways by this Act authorised or the works in connection therewith the North Western Company may at the expense of the Company restore such bridge or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned :
- (4) Whenever and so often as the North Western Company shall require to widen lengthen strengthen reconstruct alter or repair any such bridge or to widen or alter their railways or to lift or support any such bridge owing to the subsidence thereof caused by the minerals thereunder having been or

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being worked or gotten and it shall be necessary for effecting any of such purposes that the working and user of any of the tramways over such bridge should be wholly or partly stopped or delayed or that such tramways should be temporarily diverted or wholly or in part taken up or removed and shall except in cases of emergency give to the Company fourteen clear days' notice in writing requiring such stoppage delay or diversion taking up or removal the working and user of such tramways shall be stopped or delayed or such tramways shall be diverted or taken up or removed accordingly at the expense of the Company and under the superintendence of their engineer (if such engineer shall give such superintendence) but only for so long as the North Western Company may find it to be absolutely necessary for effecting such purpose and without their being liable for any compensation claims demands charges costs and expenses for or in respect of such stoppage or delay or in any way relating thereto :

- (5) In case the principal engineer of the North Western Company shall be of opinion that any such strengthening is necessary owing to the carriages or other vehicles on any tramways being or being intended to be moved by steam electrical or other mechanical power such strengthening shall be effected in all things at the expense of the Company who shall pay to the North Western Company all additional expense which they may incur or be put to in effecting any such lengthening strengthening reconstruction alterations repairs lifting or supporting by reason of the existence of the tramways so passing or any of the works connected therewith :
- (6) All works which may be necessary in constructing and maintaining any of the tramways over any bridge works or property of the North Western Company shall be constructed and maintained in all things at the expense of the Company and to the reasonable satisfaction of the principal engineer of the North Western Company or in case of difference of an engineer to be appointed by the Board of Trade on the application of the North Western Company or the Company :
- (7) All differences that may arise between the North Western Company and the Company touching anything to be done or the reasonableness of any charges or in any manner in connection with this section shall be settled by a referee to be nominated by the Board of Trade under section 33 of the

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Tramways Act 1870 and such lastly-mentioned section shall apply to all differences arising between the North Western Company and the Company touching all matters and things done or omitted to be done by either the North Western Company or the Company under the provisions of this section.

For pro-
tection of
Watford
Urban
District
Council,

31. For the protection of the urban district council of Watford (in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council have effect (that is to say) :—

- (1) Before opening the tramways for public traffic the Company shall at their own expense execute such street widenings as the Company and the council may agree or as failing such agreement the Board of Trade may deem reasonably necessary in connection with the tramways and may specify by writing under the hand of one of their secretaries or assistant secretaries and such widenings shall be executed in accordance with plans and specifications submitted to and approved by the council before the commencement of the work and shall be carried out and completed under the superintendence and to the satisfaction of the surveyor of the council. If the Company fail to execute or complete any street widenings in manner required by this sub-section the council may themselves execute and complete the same and the Company shall on demand repay to the council all expenditure and costs of and incidental thereto :
- (2) The Company shall unless the council otherwise require pave and keep paved with wood blocks of such kind and laid in such manner and on such foundations as the council may specify all such portions of the roads within the district as the Company will under the provisions of this Act and the Tramways Act 1870 incorporated herewith be liable to maintain and keep in good condition and repair :
- (3) The council shall have the option to supply and if they decide to exercise such option the Company shall take from the council such supply of electricity as may be required for the purposes of the undertaking of the Company at such price and upon such terms as may be agreed upon between the council and the Company or as failing agreement may be determined by arbitration in manner in this section provided. Provided that such option must be exercised by the council within six months after the commencement of this Act :

(4)—(A) If the council by resolution so decide within six months after the expiration of a period of thirty years from the commencement of this Act the council may by notice in writing require the Company to sell and thereupon the Company shall sell to the council the undertaking at a price which shall be agreed between the council and the Company or failing agreement shall be determined by arbitration (in manner in this section provided) to be the amount of capital expended by the Company upon the undertaking up to the date of sale less a proper sum for depreciation but without addition of any allowance for past or future profits of the undertaking or any compensation for compulsory sale or other consideration whatsoever :

(B) No such resolution shall be valid for the purposes of this sub-section unless a month's previous notice of the meeting at which the same is passed and of the purpose thereof has been given in manner in which notices of meetings of the council are usually given nor unless two thirds of the members of the Council are present and vote at the meeting and a majority of those present and voting concur in the resolution :

(C) The council may pay the purchase money and all expenses incurred by them in any purchase under the authority of this subsection out of the like rate and shall have the like powers to borrow on the security of the same as if such purchase money and expenses were expenses incurred in applying for obtaining and carrying into effect a Provisional Order obtained by them under the Tramways Act 1870 :

(5) The rails of the tramways shall subject to the provisions of this Act and to the deposited plans and sections be laid along the roads in such lines and positions as shall be reasonably approved by the surveyor of the council and the Company shall submit to such surveyor a plan showing the lines and positions of the said rails for his approval which shall be deemed to have been given unless it is refused in writing under his hand within fourteen days after receipt by him of such plan :

(6) The Company shall not under the powers of this Act without the previous consent in writing of the surveyor of the council break up any road or interrupt the traffic thereon for more than half the width of the roadway of such road at any one time :

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- (7) No posts wires brackets or other erections shall be erected by the Company under the powers of this Act otherwise than in such position of such height and such design as the surveyor of the council shall reasonably approve nor shall any such erection be used for the display of advertisements :
- (8) The provisions of section 30 of the Tramways Act 1870 shall be applicable in the case of wires and apparatus used for or in connection with the supply of electricity by the council as if the same were pipes for the supply of gas or water :
- (9) If the Company at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the tramways the Company shall at their own cost remove the snow or other matter to the side of the road but so as not to impede or obstruct the drainage or the ordinary traffic on the road and the Company shall not use salt or other unsuitable material for thawing the snow on any road Provided always and it is hereby expressly enacted that any dirt or other solid substance removed by the Company from the grooves of the rails or from any other part of the apparatus provided by them for the purposes of the tramways or resulting from the working of the tramways shall not be allowed to remain on the road but shall be forthwith taken by the Company at their own expense entirely away from the road :
- (10) The council may but so as not to interfere with the efficient working of the tramways use any posts of the Company for the purpose of sustaining lamps and pipes or wires of the council or for any other purpose not inconsistent with the use thereof by the Company without paying any rent therefor and notwithstanding anything in this Act contained if in consequence of discontinuance or abandonment the tramways shall at any time be removed any posts so used by the council shall not without the consent of the council be removed but shall if the council so determine become the property of the council without any payment for the same :
- (11) Subject to the provisions of this Act and of any regulations of the Board of Trade and of any byelaws for the time being in force with respect to the tramways the council may at such times and in such manner as they think fit between the hours of twelve at night and five in the morning but so as not to unduly impede obstruct or interfere with the ordinary traffic on the tramways use the tramways by carriages moved

by horses or otherwise for the removal of nightsoil and house refuse and for the conveyance of scavenging stuff road metal and other materials free of all costs and charges in respect of such use and the council may enter into agreements with the Company for the purposes of this sub-section and the council shall have the power to form connections between the tramways and any yards or works belonging to the council: A.D. 1901.

(12) Notwithstanding anything in this Act contained no goods minerals parcels or animals other than passengers' luggage and parcels not exceeding fifty-six pounds in weight shall be conveyed on the tramways without the consent of the council:

(13) If at any time after the opening of the tramways any part thereof or of any road upon which any part of such tramways is laid and which is repairable by the Company is in the opinion of the council out of repair the council may with the consent of the Board of Trade stop the passing of the cars and carriages of the Company along such part of the tramways and road until the same shall have been put into good condition and repair to the satisfaction of the council:

(14) The Company shall pay the costs charges and expenses of the council in respect of the examination or approval of any plans drawings or specifications and the superintendence of any works under the provisions of this section:

(15) If any difference shall arise between the council and the Company as to the construction of this section or as to the rights duties or liabilities of either the council or the Company under this section or as to any act matter or thing regulated by or referred to in this section the same shall be determined by the arbitration of some fit and proper person to be agreed upon between the council and the Company or failing such agreement to be appointed on the application of either party by the Board of Trade.

32. Notwithstanding anything in this Act contained or shown on the deposited plans the following provisions shall unless otherwise agreed between the Company and the Hertfordshire County Council have effect for the benefit and protection of the Hertfordshire County Council:— For protection of Hertfordshire County Council.

(1) The Hertfordshire County Council (hereinafter referred to as "the county council") and any person with their authority

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or consent constructing any light railway capable of being worked in connection with the tramways by this Act authorised shall be at liberty to form junctions between such light railway and any tramway by this Act authorised and the county council and all persons lawfully using any light railway so constructed may run over and use upon equal terms with the Company for traffic of all descriptions with their engines and carriages of every description and with their clerks officers and servants the tramways (which expression for the purposes of this section shall include electrical apparatus and energy) by this Act authorised so soon as the same shall have been completed and opened for public traffic :

(2) The conditions and regulations to which the county council and the Company respectively shall be subject in respect of forming any such junction and of such running over and user shall if not agreed be determined by arbitration Provided always that such terms conditions and regulations shall in every case be approved by the Board of Trade :

(3) The payments to be made by the county council to the Company in respect of the running over and user by the county council of any tramway of the Company shall be as follows :—

(A) The whole of all fares and rates received by the county council in respect of traffic (in this section hereafter referred to as “local traffic”) carried wholly in the urban district of Watford ;

(B) A simple mileage proportion of fares and rates received in respect of traffic (in this section hereafter referred to as “through traffic”) arising within or without the urban district of Watford and carried out of into or through the said district :

Provided that in accounting to the Company for receipts in respect of through or local traffic the county council shall be entitled to deduct such sum as may be agreed to be the actual cost of carriage by the county council of the said traffic over any tramways of the Company and such additional sum as may be agreed as the cost of terminal services rendered in connection with any of the said traffic :

Provided that in case of difference the amount of such deductions shall be settled by arbitration :

- (4) The Company shall account to the county council for all fares and rates in respect of through traffic received by it after deducting— A.D. 1901.
(A) Its mileage proportion of all such fares and rates ;
(B) Such sum (if any) as may be agreed or settled by arbitration for terminal services rendered in respect of such traffic :
- (5) The fares and rates for the conveyance of local traffic subject to the provisions of this Act relating to rates shall be fixed by the Company and the fares and rates for through traffic shall be fixed by the county council. Provided that the county council or the Company if dissatisfied with any fares or rates so fixed may require the same to be fixed by arbitration and all fares and rates so fixed shall be subject to the approval of the Board of Trade :
- (6) The county council running over or using any tramway by this Act authorised in accordance with the provisions of this section shall at all times observe the regulations and byelaws for the time being in force on such tramway so far as the same shall be applicable to the county council in the exercise of the said powers :
- (7) Any difference under subsections (1) to (6) of this section shall be settled in manner provided by section 33 of the Tramways Act 1870.

33. Notwithstanding anything in this Act contained or shown on the deposited plans the following provisions shall unless otherwise agreed between the Company and the Hertfordshire County Council have effect for the benefit and protection of the Hertfordshire County Council (hereinafter in this section referred to as "the county council") :—

For protection of county bridges.

- (A) Where the tramways shall be constructed over any county bridge the county council may require the Company at the expense of the Company to alter or if necessary to rebuild any such bridge and the approaches thereto with kerbing channelling and footpaths so as to provide a width between the parapets of not less than forty feet where any tramway is to be constructed as a single line and forty-eight feet where any tramway is to be constructed as a double line :
- (B) Before commencing any works by this section required to be done the Company shall furnish to the county surveyor for approval plans and sections upon a scale of not less than

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eight feet to the inch and specifications of the proposed works showing the manner in which the same are intended to be carried out and no such works shall be carried out except upon plans sections and specifications approved by the county surveyor and subject to the superintendence of the county surveyor and the Company shall pay the reasonable charges and expenses of approving the said plans sections and specifications and of such superintendence as aforesaid Provided that if within one month from receipt of any plans sections or specifications by this section required to be approved the county surveyor shall not have signified his disapproval thereof in writing the same shall be taken to be approved and the Company may proceed to construct the said works in accordance therewith :

- (c) Except as to the reasonableness of any charges and expenses required to be paid by the Company under (B) of this section the provisions of section 33 (Difference between promoters and road authority &c.) of the Tramways Act 1870 shall not apply to any of the works acts or things by this section required to be executed or done by the Company or to any requirement which the Council is by this section empowered to make upon the Company.

RATES AND REGULATIONS.

Rates for
passengers.

34. The Company may demand and take for every passenger travelling upon the tramways or any part or parts thereof including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile and in computing the said rates and charges the fraction of a mile shall be deemed a mile but the Company may charge for any distance exceeding half a mile and not exceeding two miles any sum not exceeding twopence.

Passengers'
luggage.

35. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that such luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Animals and
goods.

36. The Company may demand and take in respect of any animals goods materials articles or things conveyed by them on the

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tramways including every expense incidental to the conveyance A.D. 1901.
any rates or charges not exceeding the following :—

Animals.

For every horse mule or other beast of draught or burden
fourpence per head per mile ;

For every ox cow bull or head of cattle threepence per head
per mile ;

For calves pigs sheep and small animals one penny halfpenny
per head per mile.

Goods.

For all coals coke culm charcoal cannel limestone chalk lime salt
sand fireclay cinders dung compost and all sorts of manure
and all undressed materials for the repair of public roads or
highways twopence per ton per mile ;

For all iron ironstone iron ore pig iron bar iron rod iron sheet
iron hoop iron plates of iron slabs billets and rolled iron
bricks slag and stone stones for building pitching and paving
tiles slates and clay (except fireclay) and for wrought iron
not otherwise specially classed herein and for heavy iron
castings including railway chairs twopence halfpenny per ton
per mile ;

For all sugar grain corn flour hides dyewoods earthenware
timber staves deals and metals (except iron) nails anvils vices
and chains and for light iron castings threepence per ton
per mile ;

For all cotton wools drugs manufactured goods and all other wares
merchandise fish articles matters or things not otherwise
specially classed herein fourpence per ton per mile.

Small Packages.

For any parcel not exceeding seven pounds in weight threepence ;
For any parcel exceeding seven pounds and not exceeding
fourteen pounds in weight fivepence ;

For any parcel exceeding fourteen pounds and not exceeding
twenty-eight pounds in weight sevenpence ;

For any parcel exceeding twenty-eight pounds and not exceeding
fifty-six pounds in weight ninepence ;

For any parcel exceeding fifty-six pounds but not exceeding five
hundred pounds in weight such sum as the Company may
think fit :

A.D. 1901. Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed shall parcels but that term shall apply only to single parcels in separate packages.

For the Carriage of Single Articles of Great Weight.

For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage shall exceed four tons but shall not exceed eight tons such sum as the Company may think fit not exceeding two shillings per ton per mile ;

For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage shall exceed eight tons such sum as the Company may think fit.

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than two miles the Company may demand rates and charges as for two miles ;

For the fraction of a ton the Company may demand rates according to the number of quarters of a ton in such fraction and if there be the fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton ;

With respect to all articles except stone and timber the weight shall be determined according to the usual imperial avoirdupois weight ;

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

Company
not bound to
carry goods.

37. The Company shall not be bound unless they think fit to carry any animal parcel or goods other than passengers' luggage under and subject to the foregoing provisions of this Act.

Cheap fares
for labouring
classes.

38.—(1) The Company shall at all times after the opening of the tramways for public traffic and they are hereby required to run a proper and sufficient service not being less than two carriages each way every morning in the week and every evening in the week (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than seven in the morning or earlier

(except on Saturdays) than half-past five in the evening respectively as the Company think most convenient for artizans mechanics and daily labourers at fares not exceeding half the fares authorised to be taken for passengers under this Act. The Company on Saturdays in lieu of running such carriages after half-past five in the evening shall run the same at such hours between one and three o'clock in the afternoon as they deem most convenient to the said persons. The Company shall be liable to a penalty not exceeding five pounds for every day except as aforesaid on which they do not run such number of carriages as aforesaid in accordance with the provisions of this section. A.D. 1901.
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(2) The service of workmen's cars shall be such as may be reasonably required by the local authority or in case of difference determined by an arbitrator appointed under the Tramways Act 1870 as incorporated with this Act.

39. It shall not be lawful for the Company or any other company or person working or using the tramways except with the consent of the local authority to take or demand on Sundays or any bank or other public holiday any higher tolls or charges than those levied by them on ordinary week days. As to fares
on Sundays
and holidays.

40. If at any time after three years from the opening for public traffic of the tramways or any portion of the tramways or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion of the tramways it is represented in writing to the Board of Trade by the local authority or by twenty inhabitant ratepayers of the district of any local authority or by the Company that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion of the tramways should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee report that it has been proved to his satisfaction that all or any of such rates and charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section. Periodical
revision of
rates and
charges.

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Byelaws by
Board of
Trade.

41. Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

For regulating the use of the bell whistle or other warning apparatus fixed to the engines or carriages ;

For providing that the engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages ;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

Amendment
of Tram-
ways Act
1870 as to
byelaws
by local
authority.

42. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by this Act or by the Board of Trade regulations at which carriages are to be driven or propelled on the tramways under the authority of this Act Provided that the Board of Trade may if they think fit sanction a rate of speed not exceeding twelve miles an hour Provided further that the local authority may if they think fit make byelaws under the provisions of the Tramways Act 1870 for restricting the rate of speed to a lower rate than that so authorised.

Recovery of
penalties.

43. Any penalty under this Act or under any byelaws or regulations made under this Act may be recovered in manner provided by the Summary Jurisdiction Acts.

Orders regu-
lations &c.

44. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a Secretary or an Assistant Secretary of the Board.

MOTIVE POWER.

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45. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

Provisions
as to motive
power.

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:

(2) The Board of Trade shall make regulations (in this Act referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of such power:

(3) The Company or any other company or person using any mechanical power on the tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:

(4) The Board of Trade if they are of opinion—

(A) That the Company or such other company or person using electrical power have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public;
may by order either direct the Company or such other company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Company or such other company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order:

(5) The cars shall not be moved by animal power save in temporary emergency.

46. The Company may erect lay and maintain in on over or under the surface of any street road footpath or place such posts conductors wires pipes tubes mains plates brackets electric cables boxes and apparatus and may attach the same to any house or building and may make such openings or ways in on over or under the surface of any street road footpath or place as may be necessary

Power to
erect lay and
maintain
posts pipes
and appa-
ratus and
to make
openings in
streets.

A.D. 1901. or convenient either for transmitting electrical energy for the working of the tramways or for providing access to or forming connections with any stations engines machinery or apparatus Provided that this power shall not authorise or empower the Company to lay down place or attach any pipes works wires or apparatus on against or to any house or building or in any land not dedicated to public use without the consent of the owners and occupiers thereof Provided also that all such pipes works wires apparatus openings or ways shall for the purposes of the Tramways Act 1870 and this Act be deemed part of the tramways :

Provided further that—

- (1) Where in the opinion of the Company any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power to allow the laying down placing or attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable in the circumstances or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid ;
- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building or land but any attachments fixed or pipes works or apparatus laid or placed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Company notice in writing requiring the same to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) ;
- (3) The owner may require the Company to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building or land whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

Special provisions as to use of electrical power.

47. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :—

- (1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance :

- (2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The Company shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (4) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (5) If any difference arises between the Company and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (6) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far

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as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :

(7) The expression "Company" in this section shall include licencees and any person owning working or running carriages over any tramway of the Company.

Road authority to have right to use standards and brackets for lighting.

48. The road authority shall on giving not less than fourteen days' notice to the Company of their desire so to do have the right to use any posts standards and brackets erected in the streets within the district of such authority for the support of any electric wires or lamps or any gas lamp belonging to such authority on payment of a reasonable rental for such use Provided that in placing maintaining or altering such wires or lamps no damage shall be caused to such posts standards or brackets and no obstruction shall be caused to the working by the Company of the undertaking.

Posts &c. to be removed if user discontinued.

49. If the Company shall discontinue the use of any posts brackets or overhead electric wires placed or maintained in or over any street or road for supplying electrical motive power to the carriages used upon the tramways or if the right of the Company to use electrical motive power supplied by means of any such posts brackets or wires shall cease and determine the Company shall forthwith at their own cost remove such posts brackets and wires and shall restore and make good such streets and roads to the satisfaction of the road authority and in case of default such road authority may do all things necessary for that purpose and recover the costs and expenses thereof from the Company or they may sell and dispose of the posts brackets and wires and out of the proceeds thereof reimburse themselves the amount of such costs and expenses and the balance (if any) shall be paid to the Company For the purposes of sections 41 and 42 of the Tramways Act 1870 the posts brackets wires and other works erected provided and used for the purpose of working the tramways by electrical power shall be deemed part of the tramways.

For protection of Postmaster-General.

50.—(A) Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

(B) In the event of any tramways of the Company being worked by electricity the following provisions shall have effect :—

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- (1) The Company shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. If any question arises as to whether the Company have constructed their electric lines or other works or work their undertaking in contravention of this sub-section such question shall be determined by arbitration and the Company shall be bound to make any alterations in or additions to their system which may be directed by the arbitrator :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the undertaking of the Company the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3)—(A) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs or the laying of lines crossing the line of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work ;

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(B) Any difference which arises between the Postmaster-General and the Company or their agents with respect to any requirements so made shall be determined by arbitration :

- (4) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (5) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (6) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (7) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (8) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (9) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Company or their agents were a company within the meaning of that Act :
- (10) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid :

(11) In this section the expression "the Company" includes their lessees and any person owning working or running carriages on any of the tramways of the Company. A.D. 1901.

51. All works to be executed by the Company in any street or road for working the tramways by mechanical power in pursuance of the powers of this Act shall be deemed to be works of a tramway subject in all respects to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned. Mechanical power works to be subject to section 30 of Tramways Act 1870.

52. For the purpose of using mechanical power the Company may acquire hold and exercise patent and other rights or licences relating to motive power or otherwise but not so as to acquire any exclusive right therein. Power to acquire patent rights.

CAPITAL &c.

53. The capital of the Company shall be thirty thousand pounds in three thousand shares of ten pounds each. Capital.

54. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person or corporation accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof. Shares not to be issued until one fifth paid.

55. If any money is payable to a shareholder or mortgagee being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

56. The Company may from time to time borrow on mortgage of the undertaking any sum or sums not exceeding in the whole ten thousand pounds but no part of any such sum of ten thousand pounds shall be borrowed until the whole of the capital in respect of which the borrowing powers are to be exercised is issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such capital have been issued and accepted and that one half of such capital has been paid up and that not less than one fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such shares were issued bonâ fide and are held by the persons or corporations

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A.D. 1901. to whom the same were issued or their executors administrators successors or assigns and also that such persons or corporations or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Mortgages to comprise purchase-money paid on compulsory sale.

57. Every mortgage of the Company's undertaking shall be deemed to comprise all purchase-money which may be paid to the Company in the event of a sale to the local authority and also all or any moneys carried to the contingency fund according to the terms of the mortgage.

Indorsement of power of future purchase by local authority.

58. Every mortgage deed granted by the Company under this Act shall be endorsed with notice that such mortgage will not remain a charge upon the tramways or the undertaking or any part thereof in the event of compulsory purchase by the local authority under this Act.

For appointment of a receiver.

59. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole.

Company not to create debenture stock.

60. The Company shall not create debenture stock.

Application of moneys.

61. All moneys raised under this Act whether by shares or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

Money borrowed on mortgage to have priority.

62. All moneys to be borrowed on mortgage under this Act from the time when the same shall be advanced and the interest for the time being due thereon shall have priority against the Company and all the property from time to time of the Company over all other claims on account of any debts incurred or to be incurred or engagements entered into or to be entered into by them But nothing in this section shall affect any claim in respect of land acquired by the Company for the purposes of this Act or injuriously affected by the construction of the tramways or by the exercise of any of the powers conferred upon the Company.

First ordinary meeting.

63. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

64. The number of directors shall until the first ordinary meeting of the Company be three but the Company may at that or at any subsequent ordinary meeting increase the number to seven and may from time to time reduce and again increase the number provided that the number be never less than three nor more than seven.

A.D. 1901.
Number of
directors.

65. The qualification of a director shall be the possession in his own right of not less than twenty-five shares.

Qualification
of directors.

66. The quorum of a meeting of directors shall be three and of a general meeting of the Company shall be shareholders present in person or by proxy holding in the aggregate not less than one twentieth of the capital of the Company.

Quorum of
meetings.

67. John Fell Samuel Hunter and Walter James Kershaw shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for increasing or reducing the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

First
directors.

Election of
directors.

68. The auditors need not hold shares in the Company.

Auditors not
required to hold
shares.

69. Notwithstanding anything in this Act or in any Act or Acts incorporated therewith contained it shall be lawful for the Company out of any money by this Act authorised to be raised to pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payments until the expiration of the time limited by this Act for the completion of the works by this Act authorised or such less period as the directors may

Power to
pay interest
out of capital
during
construction.

A.D. 1901. determine but subject always to the conditions hereinafter stated
 (that is to say) :—

(A) No such interest shall begin to accrue until the Company shall have obtained a certificate from the Board of Trade that two thirds at least of the share capital authorised by this Act in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders who or whose executors administrators or assigns are legally liable for the same :

(B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :

(c) The aggregate amount to be so paid for interest shall not exceed five thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid :

(D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares :

(E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Deposit-
 money not
 to be repaid
 except so far
 as tramways
 are opened.

70. Whereas pursuant to the Standing Orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a sum of one thousand one hundred and forty pounds being five per centum upon the amount of the estimate in respect of the tramways authorised by this Act has been deposited with the Paymaster-General for and on behalf of the Supreme Court and forms part of the total sum of four thousand three hundred and seventy-eight pounds deposited in respect of the application to

Parliament for this Act (which firstly mentioned sum is referred to in this Act as "the deposit fund") Be it enacted that notwithstanding anything contained in the said Act the said deposit fund shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Act referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Act for completion of the tramways open the same for the public conveyance of passengers and if the Company shall make default in so opening the tramways the deposit fund shall be applicable and shall be applied as provided by the next following section Provided that if within such period as aforesaid the Company open any portion of the tramways for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of the tramways opened as aforesaid and the portion of the deposit fund which bears to the whole of the deposit fund the same proportion as the length of the tramways so opened bears to the entire length of the tramways the High Court shall on the application of the depositors order the portion of the deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding.

A.D. 1901.

71. If the Company do not previously to the expiration of the period limited for the completion of the tramways complete the same and open them for the public conveyance of passengers then and in every such case the deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the tramways or any portion thereof and also in compensating all road authorities for the expense incurred by them in taking up any tramway or materials connected therewith placed by the Company in or on any road vested in or maintainable by such road authorities respectively and in making good all damage caused to such roads by the construction

Application
of deposit
fund.

A.D. 1901. or abandonment of such tramways and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent and has been ordered to be wound up or the undertaking has been abandoned be paid or transferred to such receiver or to the liquidator or liquidators of the Company or be applied in the discretion of the Court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the depositors Provided that until the deposit fund has been repaid to the depositors or has become otherwise applicable as hereinbefore mentioned any interest or dividends accruing thereon shall from time to time and as often as the same shall become payable be paid to or on the application of the depositors.

Repayment
of portion
of original
deposit fund.

72. On the application of the depositors at any time after the passing of this Act the High Court may and shall order that a sum of three thousand two hundred and thirty-eight pounds being the portion of the fund deposited in respect of the application to Parliament for this Act and applicable to certain tramways and street and bridge widenings originally proposed to be authorised by this Act but which were struck out of the Bill for this Act during its progress through Parliament and the interest and dividends thereon shall be paid or transferred to the depositors or any other person or persons whom the depositors may appoint in that behalf.

MISCELLANEOUS.

Agreements
with road
authority.

73.—(1) The Company may subject to the provisions of this Act enter into agreements with the road authority with respect to the forming laying down maintaining renewing repairing working and using of the tramways and the rails plates sleepers posts wires apparatus and works connected therewith and for facilitating the passage of carriages and traffic over and along any roads or streets upon or along which any of the tramways are intended to be laid or any part thereof.

(2) The Company on the one hand and the road authority on the other hand may enter into and carry into effect agreements with respect to the cost of widening and improving by the road authority

of any roads streets bridges courts passages and footpaths within the district of such authority and as to the contributions by the Company towards the moneys to be expended on such works and the payment of any sums payable under this section by the Company to the road authority shall be deemed a purpose of this Act to which capital is properly applicable.

A.D. 1901.

74. The Company may with respect to any tramways or light railways in any neighbouring district which can be worked with the Company's tramways enter into and carry into effect contracts and agreements with the local authority of such district or with any body or company with respect to all or any of the following matters (that is to say):—

The lease working use management and maintenance by the contracting parties of all or any of the tramways or light railways in their respective districts and the works connected and used therewith or any part or parts thereof respectively ;

The making of all necessary junctions ;

The supply and maintenance under any agreement for all or any of the respective tramways or light railways of the contracting parties being worked and used by any one or more of them of rolling stock plant machinery and electrical energy necessary for the purposes and during the continuance of such agreement ;

The appointment and removal of officers and servants ;

The payments to be made and the conditions to be performed in respect of such working use management and maintenance ;

The interchange accommodation conveyance transmission and delivery of traffic coming from or destined for the respective undertakings of the contracting parties ;

The division and apportionment of the revenue arising from such traffic and the payment of any fixed or contingent rent ; and

The giving and taking of guarantees against any loss arising by reason of any such agreement and the paying out of their respective rates any loss arising by reason of such guarantees.

Company and local authorities &c. may contract to lease &c. tramways or light railways in neighbouring districts.

75. The Company may form junctions between the tramways and any tramways or light railways which can be worked in connection therewith but only with the consent of the owners and lessees of such tramways or light railways.

Junctions with tramways or light railways which can be worked in connexion with Company's tramways.

76. The Company on the one hand and the local authority of any district in which any of the tramways may be situate on the other hand may enter into and carry into effect agreements for or

Agreements with local authorities as to supply of

A.D. 1901. with respect to all or any of the following purposes and all matters incidental thereto (that is to say):—

electrical
energy.

(1) The supply to the Company by the local authority of electrical energy for working any tramways which may for the time being be worked by the Company by electrical power under the foregoing provisions of this Act or otherwise Provided that any supply of electrical energy by any such local authority to the Company shall be subject to the provisions of the respective Acts or Orders under which such local authority may be empowered to supply electrical energy:

(2) The supply to the local authority by the Company of electrical power for any purpose for which the local authority are for the time being authorised to supply the same:

(3) The payments to be made or other consideration to be given in respect of any such supply.

Supply of
electrical
energy by the
Company.

77.—(1) The Company may under the provisions of the Electric Lighting Acts 1882 and 1888 make application for a Provisional Order or licence to supply electrical energy for public and private purposes within any district in which the tramways are situate or may take a transfer of any Provisional Order granted for the like purpose in respect of any such district provided the undertaking authorised by such Order is transferable and may supply electrical energy thereunder and may apply their funds for such purposes.

(2) The Company may enter into and carry into effect agreements with any company body or person authorised by any Provisional Order or Act to supply electrical energy for the supply by the Company to such company body or person of electrical energy.

Provided that any supply of electrical energy under this or the last preceding section and any works constructed for that purpose shall be subject to all provisions for the protection of the telegraphic lines of the Postmaster-General and of his rights in respect thereof which are contained in the Act or Order by which the supplying Company authority or person is authorised to generate or supply electricity for the purposes of its own undertaking.

Deposits for
future Bills
not to be
paid out of
capital.

78. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application.

to Parliament for the purpose of obtaining an Act authorising the Company to construct any other tramway or to execute any other work or undertaking.

79. Nothing in this Act contained shall exempt the Company or the tramways of the Company from the provisions of any general Act relating to tramways now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of tolls or charges authorised by this Act.

80. All costs charges and expenses of and incident to the Costs of Act. preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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